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Case Name: *Kevin Ortega v. Kelly Services Global, LLC, et al.*

Case No.: 26CV490000

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Kelly Services Global, LLC (“Kelly”), Miguel Bobadilla (“Bobadilla”), and Intel Corporation (“Intel”) (collectively, “Defendants”) move under the Federal Arbitration Act (“FAA”), 9 U.S.C. Sections 3 and 4, to compel arbitration of Plaintiff’s claims and to stay this civil action until that arbitration is complete. Notice of Motion (the “Motion”) at 1:4-10 (filed: May 12, 2026).

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

Plaintiff Kevin Ortega (“Plaintiff”) began working at Kelly Services Global, LLC (“Kelly Services”) and Intel Corporation (“Intel”) on September 12, 2022⁸ as a Manufacturing Mask Technician. (Complaint at ¶ 2.) Plaintiff alleges that Defendants are joint employers. (*Id.* at ¶ 11.) On October 11, 2024, Plaintiff informed his supervisor Miguel Bobadilla (“Bobadilla”) that he needed to leave work early because he was sick. (*Id.* at ¶ 13.) On October 31, 2024, Plaintiff informed Bobadilla that he was unable to attend work that day because he was the victim of a robbery and was required to meet with law enforcement. (*Id.* at ¶ 14.) On November 4, 2024, Plaintiff received a subpoena from the District Attorneys’ Office and informed Bobadilla about it the following day. (*Id.* at ¶¶ 15, 16.) Plaintiff attended the court hearing on November 8, 2024. (*Id.* at ¶ 17.) However, Plaintiff was terminated from his employment that same day. (*Id.* at ¶ 18.)

Plaintiff alleges he was wrongfully terminated in retaliation for using sick leave and taking time off to appear in court. (Complaint at ¶ 19.) Plaintiff maintains he has not been compensated with all final wages and that Defendants failed to provide him with legally mandated rest periods. (Complaint at ¶¶ 20, 21.) Plaintiff filed suit on March 23, 2026 and alleges seven causes of action for: (1) retaliation for use of sick leave; (2) retaliation in violation of Labor Code section 230, subdivision (b); (3) wrongful termination in violation of public policy; (4) failure to provide rest breaks; (5) failure to issue accurate and itemized wage statements; (6) failure to pay wages due at separation;

⁸ Defendants maintain Plaintiff was assigned to work for Intel on December 27, 2023 and that he worked there until November 8, 2024. (Declaration of Salah Ali at ¶ 7.)

waiting time penalties; and (7) unlawful business practices in violation of Business & Professions Code section 17200.

In this Motion, Defendants Kelly Services, Intel, and Bobadilla (collectively “Defendants”) now seek to compel arbitration of all claims of Plaintiff because they are all covered by the Dispute Resolution and Mutual Agreement to Binding Arbitration (the “Agreement”) that Plaintiff executed as part of the onboarding process on December 12, 2023. Having reviewed the Agreement and the scope of claims it covers, the Court for reasons it now explains **GRANTS** the Motion to compel arbitration and stay this civil action until the arbitration is complete.

II. Legal Standard

Defendants assert that the Federal Arbitration Act (“FAA”) applies based on the language of the Agreement itself and because their operations affect interstate commerce. Indeed, the Agreement provides that it “shall be governed by the Federal Arbitration Act.” (Declaration of Salah Ali [“Ali Decl.”], Ex. A. at ¶ 4.) Moreover, “employment contracts, except for those covering workers engaged in transportation, are covered by the FAA.” (*EEOC v. Waffle House, Inc.* (2002) 534 U.S. 279, 289.)

The basic coverage provision of the FAA “makes the law applicable to contracts evidencing a transaction ‘involving commerce’ (9 U.S.C. § 2), which language reflects that Congress intended the law’s coverage to extend to the full reach of its commerce clause power.” (*Nieto v. Fresno Beverage Co.* (2019) 33 Cal.App.5th 274, 279 [internal citations omitted].) Here, Kelly Services connects people with job opportunities and provides companies with staffing solutions across the United States. (Ali Decl. at ¶ 3.) Thus, its operations meet the broad definition of affecting interstate commerce. For these reasons, the Agreement is governed by the FAA.

Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

III. Analysis of the Motion

A. A Valid Agreement to Arbitrate Exists between the Parties.

Defendants have attached a copy of the Agreement with Plaintiff’s name and date printed beneath the signature line. (Ali Decl., Ex. A.) (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [noting that it is a moving party’s burden to produce prima facie evidence of an agreement to arbitrate by attaching the agreement to the motion].) Plaintiff’s electronic signature has the same legal effect as a handwritten signature—and is express acceptance of an agreement to arbitrate. (*Espejo v. Southern*

California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1060; *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777.) While Plaintiff's signature is missing from the Agreement, "it is not the presence or absence of evidence of a signature which is dispositive, it is the presence or absence of evidence of an agreement to arbitrate which matters." (*Banner Entertainment v. Superior Court* (1988) 62 Cal.App.4th 348, 361.) Plaintiff's printed name on the Agreement may serve as mutual assent to be bound by its terms. The authenticity of an electronic signature may be established by detailing the "security precautions regarding transmission and use of an applicant's unique username and password, as well as the steps an applicant would have to take to place his or her name on the signature line of the employment agreement." (*Id.* at p. 1062.)

Here, as part of its onboarding process, Kelly Services uses an onboarding system known as OB365 that allows applicants to review, complete, and sign hiring forms digitally. (Ali Decl. at ¶ 4.) The process begins when a Kelly Services representative sends the applicant an email invitation containing login credentials with a link to the system, where the applicant creates a unique password and draws a personal electronic signature. (*Ibid.*) Once logged in, the applicant works through a series of standalone forms acknowledging and signing each before advancing to the next, with the option to save documents and return later. (*Ibid.*) The Agreement is among the forms presented during this process. (*Ibid.*) No documents are submitted to Kelly Services until the applicant completes and electronically signs all required forms, upon which a confirmation email is sent to the applicant. (*Ibid.*)

Records show that a Kelly Services representative manually invited Plaintiff to OB365 via email with instructions, a username, and a link to generate a password to his personal email address that was provided in connection with his application for employment. (Ali Decl. at ¶ 5.) According to these records, Plaintiff completed the onboarding process on December 12, 2023 and applied his electronic signature to each document, *including the Agreement*. (*Id.* at ¶¶ 5, 6.) Hence, the Court finds and rules that Plaintiff's printed name and date, as well as the security precautions undertaken to authenticate Plaintiff's acknowledgment of the Agreement, are sufficient to establish mutual assent to the Agreement here. The procedures described indicate the printed name and date were more likely than not the act of Plaintiff.

To the extent that Plaintiff argues that he does not recall signing the Agreement (Declaration of Kevin Ortega at ¶ 2), "[a]n arbitration clause within a contract may be binding on a party even if the party never actually read the clause." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) The general rule is that "one who assents to a contract is bound by its provisions and cannot complain of unfamiliarity with the language." (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 383.) Moreover, the failure to recall signing an agreement does not create a "factual dispute as to the signature's authenticity nor affords an independent basis to find that a contract was not formed." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 756, 758.) For these reasons, Plaintiff has not successfully challenged the Agreement's authenticity.

Accordingly, the Court finds and rules that the Agreement is a valid and binding

agreement to arbitrate between the parties in this case.

B. The Scope of the Agreement Covers Plaintiff's Claims

The Agreement applies to “all common-law and statutory claims relating to my employment, including but not limited to any claim for breach of contract, unpaid wages, wrongful termination, and for violation of laws forbidding discrimination, harassment, and retaliation on the basis of race, color, religion, gender, age, national origin, disability, and any other protected status.” (Ali Decl., Ex. A at ¶ 2.) Here, Plaintiff alleges he was wrongfully terminated in retaliation for using sick leave and taking time off to appear in court. He further maintains that he has not been compensated for all final wages and that Defendants failed to provide him with legally mandated rest periods. Plaintiff's claims arise entirely out of his employment and include retaliation, wrongful termination, failure to provide rest breaks, and failure to pay wages. The Court finds and rules that of these claims of Plaintiff squarely fall within the scope of the Agreement.

The Agreement also encompasses all Defendants. The Agreement requires the arbitration of disputes between Plaintiff, Kelly Services and “its related and affiliated companies, any *current and former employee* of Kelly Services, or any related or affiliated company and/or its *clients or customers*.” (Ali Decl., Ex. A at ¶ 1 [emphasis added].) The Agreement further states, “I understand and agree . . . the rights and obligations under this Agreement directly apply to and benefit me and Kelly Services, Inc. and its subsidiaries, regardless of which of those entities signs this Agreement.” (*Ibid.*) Intel is a client/customer of Kelly Services. Bobadilla is an employee of Kelly Services and was Plaintiff's direct supervisor. The plain language of the Agreement contemplates that disputes involving clients like Intel and employees like Bobadilla shall be resolved in arbitration rather than in court.

Although the general rule is that “one must be a party to an arbitration agreement to be bound by it or invoke it,” exceptions like equitable estoppel allow nonsignatories to compel arbitration of a dispute. (*Westra v. Marcus & Millichao Real Estate Investment Brokerage Co., Inc.* (2005) 129 Cal.App.4th 759, 763; *Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513.) Under this exception, “a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are ‘intimately founded in and intertwined’ with the underlying contractual obligations.” (*Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 271.) Under similar facts in *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782 (*Garcia*), a staffing company, Real Time hired the plaintiff and then assigned him to work for Pexco. *Garcia* held:

On these facts, it is inequitable for the arbitration about Garcia's assignment with Pexco to proceed with Real Time, while preventing Pexco from participating. This is because Garcia's claims against Pexco are rooted in his employment relationship with Real Time, and the governing arbitration agreement expressly includes wage and hour claims. Garcia does not distinguish between Real Time and Pexco in any way. All of Garcia's claims are based on the same facts alleged against Real Time.

Garcia cannot attempt to link Pexco to Real Time to hold it liable for alleged wage and hour claims, while at the same time arguing the arbitration provision only applies to Real Time and not Pexco. Garcia agreed to arbitrate his wage and hour claims against his employer, and Garcia alleges Pexco and Real Time were his joint employers. Because the arbitration agreement controls Garcia's employment, he is equitably estopped from refusing to arbitrate his claims with Pexco.

(*Garica, supra*, 11 Cal.App.5th at pp. 787-788.)

Likewise here, Plaintiff's claims are rooted in his employment with Kelly Services and the arbitration agreement expressly includes wage and hour claims. Plaintiff also does not distinguish between Kelly Services and Intel in any meaningful way. All of Plaintiff's claims against Intel are based on the same facts alleged against Kelly Services and Bobadilla. Plaintiff agreed to arbitrate his wage and hour claims against his employer and alleges that Kelly Services and Intel were joint employers. (Complaint at ¶ 11.) Hence, it would be inequitable, inefficient, and ineffective to allow the arbitration to proceed without Intel or Bobadilla. Plaintiff cannot attempt to link the Defendants for his wage and hour claims but at the same time exclude Intel and Bobadilla from arbitration. Accordingly, Plaintiff is equitably estopped from excluding Intel and Bobadilla from this arbitration. Intel and Bobadilla may equally invoke the Agreement. Thus, the scope of the Agreement not only covers Plaintiff's claims, but it also includes *all Defendants*.

The Court need not and does not reach Defendants' arguments about the lack of unconscionability. "The party opposing arbitration has the burden of proving that the arbitration provision is unconscionable." (*Arguelles-Romero v. Superior Court* (2010) 184 Cal.App.4th 825, 836.) Plaintiff failed to carry that burden and indeed has waived argument about unconscionability by not addressing Defendants' arguments about unconscionability.

Finally, a stay of these proceedings in this civil action is eminently proper under Code of Civil Procedure section 1281.4 and 9 U.S.C. section 3 until this arbitration that Court now **ORDERS** is complete.

Conclusion & Order

Defendants' Motion to compel arbitration is **GRANTED** in all respects. And this civil action is **STAYED** in its entirety pending the outcome of this arbitration.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 9

Case Name: *National Credit Acceptance, Inc. v. Philip Parlan Anima, et al.*

Case No.: 2000-7-CV-401591

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Philip Parlan Anima (“Defendant”) in this Motion invokes the equitable power of the Court under Code of Civil Procedure Section 473(d) to set aside a 25-year-old Judgment that was entered on July 9, 2001.⁹ Defendant says this Judgment should be set aside now as void by making these merits-based arguments 25 years later:

- (1) Defendant never opened or signed for the alleged account;
- (2) The credit application contains a forged signature and incorrect personal information;
- (3) Plaintiff National Credit Acceptance, Inc. (“Plaintiff”) failed to obtain a valid contract with Defendant; and
- (4) Identify theft renders any Judgment void as a matter of law.

Notice of Motion (the “Motion”) at pp. 1-2 (filed: Dec. 5, 2025).¹⁰

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

The Motion fails for multiple reasons.

First, while the 6-month time limit to set aside a Judgment under Section 473(b)¹¹ does not apply to this Motion where Defendant invokes the equitable powers of the Court

⁹ On the July 9, 2001 date of the Judgment that Defendant now seeks to set aside, (1) the official case docket of this old case filed in the 2000 shows that this Judgment was entered on July 9, 2001, *and* (2) an Exhibit that Plaintiff himself attached to this Motion confirms this “Judgment entered 07/09/2001.” *See* Verification of Debt Letter from attorney Aimee R. Morris, Esq., attorney for Assignee of Record Sacor Financial, Inc., to Defendant Anima at p. 2 (letter dated: March 19, 2025) (attached to Motion).

¹⁰ As Defendant did not file this Motion on pleading paper, and the paper that Defendant did file this Motion on contains no line numbers, the Court is unable to cite any line numbers in this Order.

¹¹ For a Judgment to be set aside under Section 473(b), the motion “shall be made within a reasonable time, in no case exceeding six months, after the judgment . . . was taken.” C.C.P. § 473(b).

to set aside a void judgment based on extrinsic fraud under Section 473(d), the California Supreme Court instructs that there is still “a strong public policy in favor of the finality of judgments and only in *exceptional circumstances* should be relief be granted” in equity. *Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 982 (emphasis added). Here, the Court finds no exceptional circumstances whatever in this case that warrant the grant of equitable relief to set aside a 25-year-old Judgment.

Second, since the equitable power of the court is being invoked, the relief sought is subject to equitable defenses, including laches. For instance, in *McCreadie v. Arques* (1967) 248 Cal. App. 39, the court there declined to grant equitable relief to set aside a judgment that was five years old because plaintiff would be prejudiced by having to prove matters five years old if that judgment were set aside. *Id.* at 46-47 (1967). Here, as the Judgment that Defendant Anima seeks to set aside is 25 years old, the prejudice that would be suffered by Plaintiff is (quite literally) exponentially greater than in *McCreadie*. In light of the great prejudice that Plaintiff would suffer if this 25-year-old Judgment were set aside, it is patently unreasonable for Defendant to seek to set aside the July 9, 2001 Judgment at this July 8, 2026 hearing—a 25-year delay. Hence, the equitable defense of laches militates strongly against the Court granting Defendant equitable relief now.

Third, equitable relief under Section 473(d) “is available *only* where the fraud . . . was ‘extrinsic’—meaning the party was denied the opportunity to be heard. If the fraud . . . goes to the merits of the action . . . it is deemed ‘intrinsic’ and *not* ground for relief. Examples of ‘intrinsic’ fraud: forgery, bribery, perjury.” California Practice Guide: Civil Procedure Before Trial at ¶ 5:439 (Weil & Brown, Eds., The Rutter Group, 2025) The reason is because intrinsic fraud like forgery “can be guarded against through diligence *during the proceedings*”—not 25 years later. *Id.* (emphasis added). Here, each and every one of the grounds that Defendant raises to argue that the Judgment is void is intrinsic, going to the merits of the action: (1) he never signed the account, (2) the credit application was forged, (3) Plaintiff never got a contract from him, and (4) there was identify theft here. Motion at p. 2, *supra*. Such intrinsic fraud is “*not* a ground for relief” under Section 473(d). California Practice Guide: Civil Procedure Before Trial at ¶ 5:439 (emphasis in original). And Defendant was never denied the opportunity to be heard on the merits on any of those grounds.

Fourth, even if the grounds for relief asserted by Defendant here could be reconceptualized or reimagined as being extrinsic fraud or mistake (and they are not), and thus eligible for equitable relief under Section 473(d), Defendant has failed to carry his burden of showing that any of those grounds are true. After carefully reviewing all the evidence submitted by Defendant and after giving Defendant the full and fair opportunity to be heard at the July 8, 2026 hearing, the Court finds that that none of them are true. They are false excuses invented decades after the fact to try to unwind, avoid, and evade a valid, long-settled Judgment.

For all these reasons, there would be nothing equitable whatever about setting aside this long-settled 25-year-old Judgment. So, in the broad exercise of its discretion, the Court declines to do so now.

Conclusion & Order

Accordingly, Defendant's Motion is **DENIED** in all respects, with prejudice.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

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